

obligations due to force majeure temporarily, its obligations under the contract shall be suspended till the effects of force majeure terminate. If the Contractor cannot fulfil its obligations due to force majeure in full for unlimited period of time, or for more than one month, the Contractor shall be entitled to terminate this Contract. Should the facts as provided in Art. 7.1 of the General Trading Terms and Conditions above occur, the Buyer shall not be entitled to compensation for damages. The Contractor undertakes to notify the Buyer of force majeure and its consequences without undue delay.

- 7.2. The Contractor shall not compensate the Buyer for damages if delivery terms are exceeded.

8. Defects of goods

- 8.1. The Buyer shall check delivered goods carefully as soon as possible, and any complaints referring to delivered goods must be filed with the Contractor by e-mail or by registered mail within 3 days of the takeover of goods according to the delivery note. If a complaint is sent by e-mail, consequently a written notice must be sent by registered mail within seven days of the goods takeover according to the delivery note. A complaint should be attached with photo documentation of the established defects of goods. After expiry of the said period, the goods shall be considered to be free of defects, with the exception of possible hidden defects. Damages caused by transport must be notified immediately in a suitable manner and documented in a record, made in the presence of the carrier upon the takeover of goods from the carrier.
- 8.2. Complaints about hidden defects of goods must be filed with the Contractor by the e-mails and then also by the registered mail immediately after their establishment.
- 8.3. All guarantees and rights to compensation for damage shall be excluded if goods were stolen or used, as well as if goods were changed without the knowledge and approval of the Contractor. The Contractor's liability for defects shall be excluded if storage conditions as recommended by the Contractor were not kept.
- 8.4. The justification of a complaint filed in due time shall be established by the Contractor's Inspection Department. The Buyer must submit the goods under complaint to the Seller. If the Contractor does not accept a complaint and in spite of that the Buyer insists on the complaint, the Contractor shall submit the goods under complaint to an authorized test laboratory for assessment. The result of the assessment by the authorized test laboratory shall be final, and the costs incurred in connection with the examination shall be paid by the losing party against which the assessment result was issued.
- 8.5. If a complaint is admitted as justified, the Contractor, after agreement with the Buyer, must either provide replacement or credit the corresponding amount for the benefit of the Buyer.
- 8.6. Any returned goods shall only be accepted after previous written agreement and in the original packing. Should any doubt about the price arise, the price agreed for delivery of the goods to the Buyer shall apply.

9. Reservation of title

- 9.1. The title to all goods delivered by the Contractor shall be retained by the Contractor till the full payment of the purchase price, including all fees, has been made. If the Contractor has several overdue claims against the Buyer, the title to goods shall pass to the Buyer only after the payment of all the claims, including their ancillary rights.
- 9.2. The Buyer must use any delivered goods that are still owned by the Contractor carefully and must store them accordingly. The Buyer undertakes to follow all of the Contractor's instructions as given to the Buyer by the Contractor in order to protect the goods or its title.
- 9.3. Any pledge or other encumbrance of products owned by the Contractor is not acceptable. The Contractor must be notified of any act of a third person against the Contractor's goods by reason of intervention.
- 9.4. By agreement of the reservation of the title, the time that the liability for damage to goods passes to the Buyer under law or under these General Trading Terms and Conditions shall not be affected.
- 9.5. The Contractor shall be entitled to request immediate return of any goods delivered if the Buyer did not pay the price of goods duly and on time, or if the Buyer actually suspended its payments.